

On the introduction of fresh grounds for opposition into opposition proceedings, see chapter IV.C.3.4.

In T 1571/12 the patent proprietor consented at the oral proceedings before the board to the introduction of a fresh ground for opposition, namely that the invention could not be carried out (Art. 100(b) EPC). The board remitted the case to the department of first instance for an answer to the highly relevant question of whether the claimed subject-matter was sufficiently disclosed for it to be carried out.

In T 350/13 the opponent's argument, that the proprietor had implicitly given its approval with respect to Art. 100(c) EPC by arguing in response to the opponent's objections, was not persuasive in admitting this ground for opposition. Irrespective of the patent proprietor at some time responding substantively to the new ground, this could not be interpreted as an implicit or binding indication that it approved the introduction of this ground into the appeal proceedings.

An appeal unconnected with the reasons given in the appealed decision (lack of inventive step) and directed only to a new ground for opposition (lack of novelty) based on a new document is contrary to the principles laid down in decisions G 9/91 and G 10/91 (OJ 1993, 408 and 420), according to which an appeal should be within the same legal and factual framework as the opposition proceedings. It is tantamount to a new opposition and is thus inadmissible (T 1007/95, OJ 1999, 733).

In T 27/13 the board held that the objection under Art. 83 EPC in the statement of grounds constituted a fresh ground for opposition under Art. 100(b) EPC that was outside the legal framework of the opposition proceedings. The board pointed out that it could find the present appeal admissible only if the same ground for opposition was raised when the appeal was filed. Only then could there be any discussion of the possibility of introducing a fresh, additional ground for opposition. Hence the appeal was inadmissible.

In T 1029/14 the first time that the appellant argued that the subject-matter of claim 1 lacked an inventive step was during appeal proceedings, two working days before the oral proceedings. This objection was not admitted into the proceedings pursuant to Art. 13(3) RPBA 2007. The board further questioned whether the line of attack starting from D1 as the closest prior art could be discussed at all in the appeal proceedings without the agreement of the patent proprietor. The appellant argued that the objection concerning inventive step starting from D1 did not constitute a fresh ground of opposition and could be examined in appeal proceedings without the agreement of the patentee, since D1 had been used to attack novelty. The board referred to the similar case T 448/03 in which inventive step was not discussed at all in the opposition proceedings, but for the first time in the appeal proceedings. In T 448/03 it was concluded that an objection concerning inventive step was to be considered a fresh ground if it was raised for the very first time in the appeal proceedings, irrespective of the fact that the document used as the starting point for the inventive step objection was the same document as used before to attack novelty.

In T.184/17 the board held that even when the ground of inventive step was neither raised and substantiated in the notice of opposition nor discussed during opposition proceedings, an objection of lack of inventive step could exceptionally be examined in the appeal proceedings without the agreement of the patent proprietor, if it stayed within the same factual and evidentiary framework of a novelty objection properly raised and substantiated in the notice of opposition. This does not mean that the ground of lack of inventive step starting from the same prior art is always implicit in a properly substantiated allegation of lack of novelty. It rather applies exclusively to a case such as the case in hand, where, after having validly raised lack of novelty in opposition on the basis of a given document and passages cited therein, the ground of lack of inventive step is subsequently invoked on appeal based only on that document and the same passages, and where therefore the factual and evidentiary framework is substantially the same.

i) No general review of the first-instance decision

In T.1799/08 the board stated that it is not the function of the boards of appeal to carry out a general review of decisions at first instance, regardless of whether such a review has been sought by the parties. In view of the character of the inter partes appeal proceedings, it could not be expected that the board, independently of its preliminary opinion on some of the critical issues for deciding on a ground not properly substantiated by the opponent which had initially raised it, would fully investigate that ground, in breach of the principle of equal treatment of the parties, and provide its own reasoning, substituting itself for an opponent which remained passive. The board thus accepted, in the absence of any evidence to the contrary, the patent proprietors' arguments.

j) Ambiguities in the claims

Reviewing and eliminating any ambiguities in the claims and description which are not necessary to refute substantiated grounds of opposition is not part of the review of the contested decision carried out during opposition appeal proceedings. In the event of ambiguities in the claims which are not connected to changes in the granted documents, Art. 69 EPC 1973 stipulates that the description and drawings must be used to interpret the claims, not that the claims must be changed (T.481/95).

k) Ex officio examination of Art. 123(2) EPC

In T.996/18, the board held that claims which the patent proprietor had amended by adding features from the description but which had not been examined in the opposition proceedings should be examined ex officio on appeal for compliance with Art. 123(2) EPC (Art. 114(1) EPC, R. 100(1) EPC). Otherwise, subject-matter might ultimately be allowed that had been determined solely by the parties, without ever having been examined by the EPO. In this case, the board had raised the objections under Art. 123(2) EPC for the first time during the oral proceedings. To uphold the right to be heard (Art. 113(1) EPC) and the principle of equality of arms, the appellant was given the opportunity to comment on the objections and to overcome them by filing a new auxiliary request.

3.2.4 Patentability requirements under examination in ex parte proceedings

In G 10/93 (OJ 1995, 172) the Enlarged Board ruled that, where the examining division had refused an application, the board had the power to examine whether the application or the invention to which it related met the requirements of the EPC 1973. This also held good for requirements the division had not considered in the examination proceedings or had regarded as fulfilled. The board should then, where appropriate, decide either to rule on the case itself or send it back to the examining division.

This followed from the fact that ex parte review was not of a contentious nature. It involved examination of the patentability requirements in proceedings in which only one party (patent applicant) was involved. The departments involved at every instance had to ensure that these requirements were fulfilled. In ex parte proceedings, therefore, the boards of appeal were not restricted either to examination of the grounds for the contested decision or to the facts and evidence on which that decision was based, and could include new grounds even though in ex parte cases too the main aim of appeal proceedings was to review the contested decision.

This decision was based on case T 933/92, in which an examining division had refused an application for non-compliance with Art. 123(2) EPC 1973. Whilst sharing the examining division's view with respect to Art. 123(2) EPC 1973, the board felt the application should be refused for lack of inventive step. In the board's view, the question whether grounds could be added or replaced was not resolved by G 9/91 and G 10/91.

If an application for which no search had been carried out in accordance with R. 45 EPC 1973 (R. 63 EPC), inter alia for lack of clarity of the claims, had been refused for the same reason, a board of appeal need only examine whether the claims failed to comply with the clarity requirement of Art. 84 EPC 1973 to such an extent that it was not possible to carry out a meaningful search. Having found that the claims fulfilled the requirements of the EPC to such an extent that it should have been possible to carry out a search, the board in T 1873/06 remitted the application to the examining division for an additional search to be performed and the substantive examination to be continued.

In T 1367/09, when preparing the communication pursuant to Art. 15(1) RPBA 2007 the board did not raise the issue of Art. 84 EPC 1973. Nevertheless, when reconsidering the case in preparation for the oral proceedings the board noted that Art. 84 EPC 1973 should indeed be addressed in the oral proceedings. The board noted that in the light of G 10/93 (OJ 1995, 172) the board had the power, in ex parte appeal proceedings, to enforce any grounds for refusal of an application, in particular grounds which the examining division did not consider at all or held to be satisfied.

The extent of the obligation to review a case where the appeal is partially withdrawn is discussed in chapter V.A.7.3.3 "Partial withdrawal of appeal by sole appellant and opponent".

3.3. Facts under examination – applying Article 114 EPC in appeal proceedings

3.3.1 Boards to examine facts of own motion

Art. 114(1) EPC, which also applies in appeal proceedings, requires the board to establish the facts of its own motion. See J 4/85, OJ 1986, 205; T 1800/07; T 1574/11. The obligation of ex officio examination as laid down in Art. 114(1) EPC is explicitly limited in particular by Art. 114(2) EPC, i.e. the possibility of disregarding facts and evidence not submitted in due time, which is further specified by Art. 12 and 13 RPBA 2020. Although Art. 114(1) EPC formally also covers the appeal procedure, this provision generally applies in a more restrictive manner in inter partes appeal proceedings than in opposition proceedings (see G 9/91, OJ 1993, 408 and G 10/91, OJ 1993, 420). In T 1370/15 the board noted that this meant that a board was not excluded outright from introducing new facts and evidence in inter partes proceedings. The explanatory remarks on Art. 13(1) RPBA 2020 state: "Where the Board raises an issue of its own motion under Art. 114(1) EPC, the party's right to be heard under Art. 113(1) EPC must be respected." The board stated that this sentence made it clear that, under the RPBA 2020, a board is not prohibited from raising issues of its own motion.

As the Enlarged Board made clear in G 8/93 (OJ 1994, 887), the board's obligation under Art. 114(1) EPC 1973 existed only once proceedings were pending (see also T 690/98). Earlier, T 328/87 (OJ 1992, 701) had already ruled that the facts could be investigated only if the appeal was admissible. There were, however, limits to this obligation, for example under Art. 114(2) EPC 1973, where facts and evidence are submitted late. The same applied if an opponent (respondent) withdraws his opposition: in T 34/94 the board found that, "if in the event of withdrawal of the opposition the opponent is the respondent, the board may take into account evidence which was submitted by the opponent prior to withdrawal of the opposition. However, for reasons of procedural economy, the duty of the EPO to examine the facts of its own motion does not extend to its having to examine the submission of the opponent that a previous oral disclosure took place if the crucial facts were difficult to ascertain without his co-operation" (this confirmed the case law in T 129/88, OJ 1993, 598; T 830/90, OJ 1994, 713; T 887/90, T 420/91 and T 634/91; see also T 252/93 and T 1047/03).

In T 1574/11 the board observed that it was not restricted to the facts, evidence or arguments provided by the parties. As the primary purpose of the appeal procedure was to check that the contested decision was correct, the board was in principle entitled to consider the evidence provided therein if it deemed it to be relevant to its own decision.

T 182/89 (OJ 1991, 391) sets out what the obligation to investigate involves; Art. 114(1) EPC 1973 should not be interpreted as requiring the opposition division or board of appeal to ascertain whether there was support for grounds for opposition not properly substantiated by an opponent, but as enabling the EPO to investigate fully the grounds for opposition which were both alleged and properly substantiated pursuant to R. 55(c) EPC 1973 (see also T 441/91 and T 327/92).

The board in T.2501/11 stated in its catchword: where prior publication of a citation has been admissibly disputed and the party bearing the burden of making the case for and proving it fails to provide a substantiated response, the board cannot treat that citation as prior art because opposition appeal proceedings are adversarial and so conducted in accordance with the adversary system of procedure, in which it is for the parties to make their cases and the boards' power to examine the facts of their own motion (Art. 114(1) EPC) is limited.

In T.862/16 the board raised, ex officio, a further objection under Art. 76(1) EPC. The appellant objected to the board's raising new issues in the appeal proceedings, arguing that new Art. 12(2) RPBA 2020 establishes the character of the appeal proceedings as a judicial review in which the parties have only very limited room for amending their case with respect to the first-instance proceedings. The board therefore should be similarly constrained from introducing new objections of its own motion. The board stated that Art. 12(2) RPBA 2020 framed the "primary object of the appeal proceedings [as being] to review the decision under appeal in a judicial manner", but mainly concerned, if at all, obligations on the parties and not the board. The board saw here no provision, or any other provision of the RPBA 2020, which could and would restrict its power conferred by Art. 111(1) and 114(1) EPC to raise new objections of its own motion. This would, moreover, be incompatible with the spirit and purpose of the Convention (Art. 23 RPBA 2020). Thus, provisions of the RPBA as secondary legislation according to Art. 23(4) EPC and R. 12c EPC could never take precedence over the provisions of the EPC itself. The board noted in passing that in ex parte appeal proceedings any new ground, i.e. one not examined by the first-instance department, could be invoked by a board of appeal under Art. 114(1) EPC during the appeal proceedings (cf. G. 10/93, OJ 1995, 172). That the board might raise new objections, such as even a new inventive-step objection, had furthermore been confirmed by the Enlarged Board of Appeal (see e.g. R. 16/13).

In T. 1370/15 the board stated in its catchword that not only in ex parte, but also in inter partes appeal proceedings, a board is allowed to introduce new ex officio common general knowledge without evidence of such knowledge which prejudices maintenance of the patent, to the extent that the board is knowledgeable in the respective technical field from the experience of its members working on cases in this field.

3.4. Review of first-instance discretionary decisions

3.4.1 Principles applying to the review of first-instance discretionary decisions

a) General

In several decisions, the boards have addressed the issue of their scope for reviewing decisions taken by departments of first instance in exercise of their discretion. Among the factors to be considered is whether or not the department of first instance exercised its discretion properly.

The issues associated with exercising discretion are addressed in a number of other chapters in the context of the various individual provisions conferring discretion: see